

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

**[PROPOSED] ORDER SUSTAINING
DEFENDANT'S DEMURRER TO
PLAINTIFF'S FIRST AMENDED
COMPLAINT ("FAC")**

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

DATE: MAY 13, 2026

TIME: 9:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 Defendant CSAA INSURANCE EXCHANGE's ("Defendant") Demurrer to Plaintiff's First
2 Amended Complaint ("FAC") came for hearing on _____, 2026, in the above-referenced
3 Court. Counsel for Defendant and Plaintiff (in pro per) appeared. Having considered Defendant's
4 Demurrer to Plaintiff's FAC, and good cause appearing therefore,

5 **IT IS HEREBY ORDERED THAT** Defendant's Demurrer to Plaintiff's FAC is sustained
6 without leave to amend as to the below causes of action as follows:

7 1. The first cause of action for Fraud and Deceit because: i) This Court does not have
8 jurisdiction over the matters alleged in the FAC; ii) Plaintiff has other actions pending—including
9 a pending appeal—which are intertwined with the matters alleged in the FAC; iii) the FAC fails to
10 state facts sufficient to constitute a viable cause of action; iv) the entire FAC is uncertain and legally
11 unsupportable; v) the FAC improperly targets Defendant's protected litigation conduct under Civil
12 Code § 47(b); vi) the FAC presents an improper collateral attack on a prior valid judgment; vii) the
13 relevant statute of limitations bars Plaintiff's claims in the FAC; and viii) Plaintiff does not have
14 standing.

15 2. Second Cause of Action for Violation of Business and Professions Code § 17200
16 (UCL) because: i) This Court does not have jurisdiction over the matters alleged in the FAC; ii)
17 Plaintiff has other actions pending—including a pending appeal—which are intertwined with the
18 matters alleged in the FAC; iii) the FAC fails to state facts sufficient to constitute a viable cause of
19 action; iv) the entire FAC is uncertain and legally unsupportable; v) the FAC improperly targets
20 Defendant's protected litigation conduct under Civil Code § 47(b); vi) the FAC presents an improper
21 collateral attack on a prior valid judgment; vii) the relevant statute of limitations bars Plaintiff's
22 claims in the FAC; and viii) Plaintiff does not have standing.

23 **IT IS SO ORDERED.**

24
25
26 Dated: _____

JUDGE OF THE SUPERIOR COURT

1 ***Franciscus Dylan Rosario v. CSAA Insurance Exchange; et al.***
2 ***San Francisco County Superior Court Case No.: CGC-25-631802***

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 13, 2026, I served the following document: **[PROPOSED] ORDER**
7 **SUSTAINING DEFENDANT’S DEMURRER TO PLAINTIFF’S FIRST AMENDED**
8 **COMPLAINT (“FAC”).**

9 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served 10 the above referenced document(s) by registered or certified mail, return receipt requested, with the United 11 States Postal Service, in a sealed envelope with postage fully prepaid.
12	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed 13 below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney’s 14 office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being 15 served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning 16 and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the 17 party’s residence with some person not younger than 18 years of age between the hours of eight in the 18 morning and six in the evening.
19	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an 20 overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for 21 collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery 22 carrier.
23	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail 24 address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 25 1010.6(a)(2), (4) and (5).

26 Addressed as follows:

27 **PLAINTIFF, IN PRO PER**

28 Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing
is true and correct. Executed on Sacramento, California on April 13, 2026.

Monique Schubert
Monique Schubert